

1 This Court should not follow the analysis of the Court of Appeals for the Fourth Circuit
 2 in *Yousuf v. Samantar*, which held that that while the Executive Branch’s determination regarding
 3 status-based immunity under the common law receives “absolute deference,” the Executive’s
 4 determination regarding conduct-based immunity is not controlling, but “carries substantial
 5 weight.” 699 F.3d 763, 773 (4th Cir. 2012). The Fourth Circuit’s approach constitutes legal
 6 error and cannot be reconciled with the Supreme Court’s decision in *Samantar*, which itself
 7 involved conduct-based immunity. The defendant in that case was a former Somali official. See
 8 *Samantar*, 560 U.S. at 308–09, 310 n.5. Under international law, former officials enjoy conduct-
 9 based immunities for official acts taken while in office. See, e.g., 1 *Oppenheim’s International*
 10 *Law* 1043–44 (Robert Jennings & Arthur Watts, eds., 9th ed. 1996). Yet, in concluding that
 11 Congress did not intend to alter “the State Department’s role in determinations regarding
 12 individual official immunity,” *Samantar*, 560 U.S. at 323, the Court made no distinction between
 13 status- and conduct-based immunity determinations.

15 And in discussing the Department of State’s historic role, the Supreme Court explained
 16 categorically that when the Department of State submitted a Suggestion of Immunity, a “district
 17 court surrendered its jurisdiction.” *Id.* at 311. Indeed, two of the cases cited by the Supreme
 18 Court in *Samantar* regarding foreign officials—*Heaney v. Government of Spain*, 445 F.2d 501,
 19 504–05 (2d Cir. 1971), and *Waltier v. Thomson*, 189 F. Supp. 319, 320–21 (S.D.N.Y. 1960)—
 20 involved consular officials who had only conduct-based immunity for acts carried out in their
 21 official capacity. And in reasoning that Congress did not intend to modify the historical practice
 22 regarding individual foreign officials, see *Samantar*, 560 U.S. at 322, the Supreme Court cited a
 23 third case, *Greenspan v. Crosbie*, No. 74 Civ. 4734(GLG), 1976 WL 841 (S.D.N.Y., Nov. 23,
 24 1976), in which the district court deferred to the Department of State’s recognition of conduct-
 25 based immunity of individual foreign officials, see *id.* at *2.